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21-CIV-06029 JOHN SCHOLZ, III VS UNITED AIRLINES, INC., A DELAWARE CORP.,
LINE 2

JOHN R. SCHOLZ
UNITED AIRLINES, INC., A DELAWARE CORP.,

JANE C. MARIANI
AMANDA C. SOMMERFELD

PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH SUBPOENAS DIRECTED TO TEAMSTERS LOCAL 986 AND LOCAL 856.

TENTATIVE RULING:

Plaintiff's Motion to Compel Compliance with Subpoenas directed to Teamsters Local 986 and Local 856, is DENIED.

Legal Basis

The process by which a nonparty is generally required to provide discovery is a deposition subpoena. (Cal. Code of Civ. Proc. section 2020.010(b).) The subpoena must designate the records "either by specifically describing each individual item or by reasonably particularizing each category of item" and must command compliance "on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later." (Cal. Code of Civ. Proc. section 2020.410(a), (c).)

Upon receipt of the subpoena, a nonparty must make the production on the date and in the manner specified, unless grounds exist to object or disregard the subpoena. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011.) The nonparty either complies with the subpoena or does not—there is no statement of intended compliance (*Id.*) "On that date, the subpoenaing party has all of the information it needs to meet and confer regarding the nonparty's compliance and, if unsatisfied, prepare a motion to compel." (*Id.*, at 1033.)

When a nonparty fails to produce documents as commanded, "the party seeking discovery may move the court for an order compelling that answer or production." (Cal. Code of Civ. Proc. section 2025.480.) The moving party must file the motion within 60 days after "the completion of the record of the deposition." (*Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127, quoting Cal. Code of Civ. Proc. section 2025.480.) For business records subpoenas, this 60-day period begins when the nonparty either produces documents with objections or fails to produce on the designated date (*Id.*)

Here, Plaintiff moves to compel non-party Teamsters Local 986 and Local 856 (hereinafter collectively the "Unions") on its subpoenas issued to same. The motion is based on two arguments, first that the custodian of record's affidavit is incomplete, evasive or non-compliant, and second that the Unions' document production is incomplete. Motion, pg. 2, lines 10-15. Each argument will be addressed separately.

Discussion

I. Plaintiff's claim that the custodian of record's affidavit is incomplete, evasive or non-compliant.

Plaintiff points out that the Evidence Code provides the form for a proper affidavit by a custodian. Evidence Code Section 1561 provides in full:

- (a) The records shall be accompanied by the affidavit of the custodian or other qualified witness, stating in substance each of the following:
 - (1) The affiant is the duly authorized custodian of the records or other qualified witness and has authority to certify the records.
 - (2) The copy is a true copy of all the records described in the subpoena duces tecum or search warrant, or pursuant to subdivision (e) of Section 1560, the records were delivered to the attorney, the attorney's representative, or deposition officer for copying at the custodian's or witness' place of business, as the case may be.
 - (3) The records were prepared by the personnel of the business in the ordinary course of business at or near the time of the act, condition, or event.
 - (4) The identity of the records.
 - (5) A description of the mode of preparation of the records.
 - (b) If the business has none of the records described, or only part thereof, the custodian or other qualified witness shall so state in the affidavit, and deliver the affidavit and those records that are available in one of the manners provided in Section 1560.
 - (c) If the records described in the subpoena were delivered to the attorney or his or her representative or deposition officer for copying at the custodian's or witness' place of business, in addition to the affidavit required by subdivision (a), the records shall be accompanied by an affidavit by the attorney or his or her representative or deposition officer stating that the copy is a true copy of all the records delivered to the attorney or his or her representative or deposition officer for copying.
- Evidence Code § 1561

Plaintiff provides a copy of the relevant Affidavits of Custodian of Record. Mariani Decl., Exh. 7 & 8. The Unions counter that it was Plaintiff who selected the deposition officer Ensign Legal Support, and that Ensign Legal Support provided the very form affidavit which was executed and returned. Union Opp., pg. 12, lines 14-17. None of the arguments that Plaintiff attempts to make on the Affidavits, the form of which were essentially provided by Plaintiff's very own deposition officer, are persuasive. Further, the Affidavits at issue (Mariani Decl., Exh. 7 & 8) fully comply with Evidence Code Section 1561. Plaintiff's claims to the contrary are not persuasive.

II. Plaintiff's claim that the Union's document production is incomplete.

Plaintiff makes various arguments in support of its theory that the Union's document production is incomplete. On the one hand, Plaintiff confirms that actual documents were produced, but then concludes "[t]his is insufficient." Mtn, pg. 9, line 19. Plaintiff claims it has or already possesses certain responsive records that were not included in the production, and thus the theory is "it is reasonable to believe that there are records" (Mtn. pg. 9, line 24) that the Union's failed to produce; however, this is pure speculation. Or when Plaintiff likewise speculates "there must be some responsive records as to how these changes to terms and conditions came to be." Mtn. pg. 10, line 16-17. This type of speculation by Plaintiff's counsel, was somewhat recently addressed during a recent Informal Discovery Conference between Plaintiff and Defendant held on June 9, 2026, wherein counsel was essentially advised that pure speculation is not grounds for a motion to compel.

The Union's argue that this is the second time that the Court has had to address motions to almost identical subpoenas. Union Opp., pg. 1, lines 24-25. The Court ruled on that prior motion, granting and denying in part the motion to quash. *See*, Minute Order 5/20/2024. In actuality, this present motion is the *third* time the Court has had to address these subpoenas. The second time was Plaintiff's Application for an Order to Show Cause re: Contempt that Plaintiff sought against the Unions, which was denied over a year ago. *See*, Minute Order 6/16/2025. On this present motion, the Unions position is quite clear: "Respondents have produced all available response documents." Union Opp., pg. 2, line 7. The Union then goes on to explain in the remainder of its opposition how every single category was responded to, which for the sake of brevity will not all be repeated herein. The Union's sentiment is clear when it states, "Respondent is not a party to this litigation and are struggling to understand what documents Plaintiffs claim they possess." Union Opp., pg. 10, line 13. The Court joins in that frustration.

Defendant joined in partial opposition to this motion, and its opposition also has merit. For the sake of brevity, most of this opposition does not need to be restated though it was fully considered, and a few comments are telling. "Four years into this case, Plaintiffs have not deposed anyone from United; they have instead propounded serial discovery requests on United and third-party subpoenas on the Teamsters." Def.'s Opp., pg. 3, lines 19-20. "Plaintiffs cannot base their Motion on mystery documents allegedly in their possession but not before the Court." Def.'s Opp., pg. 9, lines 19-20. The Court agrees, and this point is also relevant to the earlier finding, that pure speculation is not ground for a motion to compel.

The Motion is accordingly DENIED, including the related request by Plaintiff for sanctions.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00585

IN RE ILLUMINA, INC. SHAREHOLDER LITIGATION

LINE 3

LOREN SCOTT MAR, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED
FRANCIS A. DESOUZA

PATRICK T. JOHNSON
KOJI F. FUKUMURA

DEFENDANT: FRANCIS DESOUZA, SAM SAMAD, KAREN MCGINNIS, JAY FLATLEY, FRANCES ARNOLD, CAROLINE DORSA, ROBERT EPSTEIN, SCOTT GOTTLIEB, GRAY GUTHART, PHILIP SCHILLER, SUSAN SIEGEL, JOHN THOMPSON, SCOTT DAVIES, JOYDEEP GOSWAMI AND ILLUMINA, INC.'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Francis A. deSouza, Sam A. Samad, Karen McGinnis, Jay T. Flatley, Frances Arnold, Ph.D., Caroline Dorsa, Robert S. Epstein, M.D., Scott Gottlieb, M.D., Gary S. Guthart, Ph.D., Philip W. Schiller, Susan E. Siegel, John W. Thompson, and Illumina, Inc.'s ("Illumina") (collectively, "Defendants") Motion for Judgment on the Pleadings is DENIED.

Defendants' Request for Judicial Notice is GRANTED, but not for the truth of the matters therein. The Court finds that each of the documents which Defendants request judicial notice of is either incorporated by reference into Plaintiffs' complaint, a record of a U.S. or foreign court, or not reasonably subject to dispute. (See Evid. Code §§ 452(d),(f),(h); *City of Port Hueneme v. Oxnard Harbor Dist.* (2007) 146 Cal. App. 4th 511, 513-14.) Defendants have given Plaintiffs sufficient notice of these requests and have provided the Court with sufficient information to take judicial notice of the documents. (Evid. Code § 453.)

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438 (¶ 7:277 ff.), the rules governing demurrers apply. [*Cloud v. Northrop Grumman Corp.* (1998) 67 CA4th 995, 999, 79 CR2d 544, 546 (citing text); *Southern Calif. Edison Co. v. City of Victorville* (2013) 217 CA4th 218, 227, 158 CR3d 204, 209-210; *Templo v. State of Calif.* (2018) 24 CA5th 730, 735, 234 CR3d 406, 409—'motion for judgment on the pleadings is equivalent to a demurrer' (internal quotes omitted)]" (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) ¶ 7:275.)

"The statutory motion for judgment on the pleadings does not lie on grounds previously raised by demurrer unless there has been a 'material change in applicable case law or statute' since the demurrer was overruled. [CCP § 438(g)(1); see *Yancey v. Sup.Ct. (Neal)* (1994) 28 CA4th 558, 562, 33 CR2d 777, 779, fn. 1 (citing text)]" (Id. at ¶ 7:305.)

On September 16, 2025, this Court (Hon. Finigan) sustained in part and overruled in part Defendants' demurrer to Plaintiff's Consolidated Complaint. Defendants had demurred to the first through third causes of action of the Complaint (alleged violations of Sections 11, 12, and 15 of the Securities Act of 1933) on the grounds that Plaintiffs lacked standing and the Complaint failed to state a cause of action. (Order re Illumina Defendants' Demurrer, p. 6:25-28.) The Court overruled the first cause of action on the grounds that "Plaintiffs have sufficiently pled that Illumina Defendants made false and/or misleading